

## 20STCV29099 20STCV29099

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Case Number: 20STCV29099 Hearing Date: August 19, 2026 Dept: 224

Osuna v. Toyota Motor Sales, U.S.A. Inc.

### TENTATIVE RULING

Plaintiff's motion for attorneys' fees, costs, and expenses is granted in part and denied in part. The Court grants Plaintiff attorneys' fees in the amount of \$68,851.22, additional anticipated fees in the amount of \$2,000.00, and costs in the amount of \$14,813.83. Therefore, the Court awards Plaintiff \$85,665.05 total in attorneys' fees, costs, and expenses.

As a result of this ruling, pursuant to Code of Civil Procedure section 664.6, the matter is dismissed WITHOUT PREJUDICE today, with the Court retaining jurisdiction to enforce the payment of the fees awarded here pursuant to the settlement terms. Once fees are paid, the parties may file a dismissal WITH PREJUDICE, pursuant to Code of Civil Procedure section 664.6(g).

### ANALYSIS

#### Introduction

On July 31, 2020, Plaintiff filed the Complaint in the instant action.

On June 12, 2025 a Notice of Settlement of Entire Case was filed.

On October 16, 2025, Plaintiff filed the instant Motion for Attorneys' Fees, Costs, and Expenses pursuant to Civil Code section 1794(d), seeking a total of \$142,334.61, consisting of: (1) \$91,126.50 in attorneys' fees for Strategic Legal Practices, APC ("SLP"); (2) a 1.35 multiplier enhancement on the attorneys' fees (or \$31,894.28); (3) \$14,813.83 in costs and expenses; and (4) an additional \$4,500.00 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply, and attend the hearing on this Motion.

On August 6, 2026, Toyota filed an Opposition.

On August 12, 2026, Plaintiff filed a Reply.

## Request for Judicial Notice

Plaintiff requests that the Court take judicial notice of thirty-three (33) documents pursuant to California Evidence Code sections 452 and 453. Each is an order, minute order, or tentative ruling on a motion for attorneys' fees, costs, and expenses issued in other Song-Beverly or "lemon law" matters litigated by SLP, in the Los Angeles Superior Court, other California superior courts, and the United States District Courts.

A court may take judicial notice of the records of any court of this state and of the United States. (Evid. Code, § 452(d).) The Court therefore takes judicial notice of the existence of the thirty-three orders identified in Plaintiff's request.

The Request for Judicial Notice is GRANTED.

## Legal Standard

This case arises from the Song-Beverly Consumer Warranty Act. Under that Act, "any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract," such as in this case, "may bring an action for the recovery of damages and other legal and equitable relief." (Civ. Code, § 1794, subd. (a).) "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

The lodestar method of calculation applies to a statutory award of attorney fees unless the statute provides another method. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1135.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.)

"In determining the lodestar amount, a prevailing party generally may not recover for work on causes of action on which the party was unsuccessful" except in some cases where amounts are so intertwined that it would be impracticable to separate them out. (Mann v. Quality Old Time Service, Inc. (2006) 139 Cal.App.4th 328, 342; Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 157.) " 'Attorneys fees need not be apportioned between distinct causes of action where plaintiff's various claims involve a common core of facts or are based on related legal theories.' " Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 159.) "[A]ttorney fees need not be reduced for work on unsuccessful claims if the claims 'are so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units.'" (Mann v. Quality Old Time Service, Inc. (2006) 139 Cal. App. 4th 328, 342.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997, overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664.) "A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether." (Chavez v. City of L.A. (2010) 47 Cal.4th 970, 990.)

## Lodestar

Plaintiff requests a lodestar in the amount of \$91,126.50 in attorney fees.

The hourly rates for the attorneys and law clerks who billed on this matter range from approximately \$325 to \$875 per hour, with the majority of the work performed at rates between \$325 and \$695 per hour. Payam Shahian, the firm's managing partner, did not submit any of his time supervising this matter. (Shahian Decl. ¶ 26, Exh. 1.) The Shahian Declaration sets forth each timekeeper's experience and education and identifies numerous prior orders in which the same or comparable rates were approved for these SLP attorneys, in both the Los Angeles Superior Court and the Central District of California. (Shahian Decl. ¶¶ 7-17.) The Declaration further compares counsel's rates to the 2024-2025 Laffey Matrix, adjusted upward for the Los Angeles market, and to prevailing market rates accepted by courts in this region. (Id. ¶ 19.)

The Court finds the hourly rates to be reasonable.

Plaintiff seeks to recover fees for 190.3 hours of work incurred on the matter.

#### Excessive Billing

Defendant requests a reduction on various entries in Plaintiff's billings. "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier, supra, 163 Cal.App.4th at 564.)

Defendant challenges the following hours submitted by Plaintiff:

1. Templated Complaint, Discovery Requests and Responses, Meet and Confer Correspondence, Motions in Limine, and Fee Motion — The majority of Defendant's challenges are brought on the ground that counsel billed an excessive number of hours for what Defendant characterizes as duplicative, "templated" work repeated in every lemon law matter counsel litigates. Considering the documents at issue and the time entries in Exhibit 1, the time spent appears to demonstrate reasonable efficiency created by using prior materials as references. The Court finds the fees reasonable and will not reduce fees on this basis.
2. Motion to Deem RFAs Admitted — December 16, 2020: Defendant challenges 3.5 hours (\$1,452.50) billed to draft a motion to deem requests for admission admitted that counsel later withdrew upon realizing that Defendant had in fact served responses. (Sandoval Decl. ¶ 3; Exh. A, line 5.) This time was not reasonably incurred. The Court reduces this entry by 3.5 hours (\$1,452.50).
3. Motion to Compel PMQ Deposition — March 1, 2021: Defendant challenges 4.0 hours (\$1,660.00) billed to draft a motion to compel a PMQ deposition that was never filed. (Sandoval Decl. ¶ 6; Exh. A, line 13.) The Court reduces this entry by 4.0 hours (\$1,660.00).
4. Deposition Preparation and Attendance: Defendant challenges the disparity between the 73.2 hours billed in connection with depositions and the approximately 12.9 hours of deposition time actually taken across the three depositions in this case. (Sandoval Decl. ¶¶ 8-9, 12, 23; Exh. A.) Reasonable preparation ordinarily exceeds the length of the deposition itself, and the specific preparation entries do not, standing alone, warrant a targeted reduction. The Court declines a further reduction on this basis.
5. Objection to Section 998 Offer — June 5, 2025: Defendant challenges 6.0 hours (\$3,900.00) billed to draft an objection to the section 998 offer that Plaintiff accepted days later, settling the case. (Sandoval Decl. ¶ 13; Exh. A, line 154.) Evaluation of the offer is compensable; however, drafting a formal objection to an offer counsel then accepted was largely unproductive. The Court reduces this entry by 3.0 hours (\$1,950.00).

The Court taxes a total of \$5,062.50 from Plaintiff's attorneys' fees.

Accordingly, after the reduction, the Court awards a total lodestar in the amount of \$86,064.00.

#### Number of Timekeepers

Defendant separately contends that an excessive number of attorneys billed on this matter and that the fees should be reduced on that basis.

“Reasonable compensation does not include compensation for padding” in the form of inefficient or duplicative efforts.... [Citations.] A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.” (Id. (internal quotations omitted).) (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 35.)

While there is no set number of attorneys who are allowed to work on a case, “it is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, non-complex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 39.) “Just as there can be too many cooks in the kitchen, there can be too many lawyers on a case.” (Id. at p. 38, quoting Donahue v. Donahue (2010) 182 Cal.App.4th 259, 272.)

Here, no fewer than 25 timekeepers are cited as having worked on this matter, in a routine Song-Beverly case that resolved before trial for a \$25,000 cash payment.

“When a voluminous fee application is made the court may make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure” (Morris v. Hyundai Motor Am. (2019) 41 Cal.App.5th 24, 40, quoting Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 41 [cleaned up].)

Upon review of the billing records, the Court agrees that there has been unreasonable padding. The Court will adopt an “across-the-board percentage cut” of 20% here as to the remaining entries.

Accordingly, the Court awards a lodestar in the amount of \$68,851.22.

#### Multiplier

Plaintiff requests a multiplier of 1.35, contending that counsel obtained an excellent outcome, undertook the matter on a contingency basis, and faced delay in compensation due to extended litigation.

“The award of a multiplier is in the end a discretionary matter largely left to the trial court.” (Hogar v. Community Development Com’n of City of Escondido (2007) 157 Cal.App.4th 1358, 1371.) “The award of a multiplier is in the end a discretionary matter largely left to the trial court.” (Hogar v. Community Development Com’n of City of Escondido (2007) 157 Cal.App.4th 1358, 1371.)

“[T]he trial court is not required to include a fee enhancement for exceptional skill, novelty of the questions involved, or other factors. Rather, applying a multiplier is discretionary.” (Rey v. Madera Unif. Sch. Dist. (2012) 203 Cal.App.4th 1223, 1242.)

Plaintiff has not demonstrated that the matter was novel or difficult or warranted particular attention. Plaintiff did not identify any new or unique issues in this action, or extraordinary motion practice for a vehicle case, and the matter resolved before

trial by acceptance of a section 998 offer. The contingent risk of the representation is already reflected in counsel's approved market rates.

The court declines to award a multiplier without a persuasive showing of complexity or novelty under the Song-Beverly Act. Defendant's request for a negative multiplier is likewise denied, as the reductions above adequately account for the identified inefficiencies.

#### Anticipated Fees

Plaintiff, as revised in the reply, requests \$2,000.00 for counsel to review Defendant's Opposition, draft the Reply, and attend the hearing on this Motion. The Court awards this amount in full.

#### Costs

Plaintiff requests \$14,813.83 in costs and expenses. Under Code of Civil Procedure section 1794(d), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Section 1794(d) permits a prevailing buyer to recover costs and expenses by noticed motion, and that avenue is independent of, and broader than, the memorandum-of-costs procedure under California Rules of Court, rule 3.1700 and Code of Civil Procedure section 1033.5. (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 138.) A memorandum of costs is therefore not a prerequisite to recovery here. Defendant does not argue that as part of the settlement agreement the parties agreed that Plaintiff would file a separate memorandum of costs. It is more cost-effective for the parties to address fees and costs in one proceeding.

Defendant challenges the costs solely on the ground that no memorandum of costs was filed and does not identify any specific cost item as unrecoverable. The Court finds these costs and expenses were reasonably incurred in the commencement and prosecution of this action. No Motion to Tax or Strike Costs has been filed.

Accordingly, the Court awards Plaintiff \$14,813.83 in costs and expenses.

#### Conclusion

Plaintiff's motion for attorneys' fees, costs, and expenses is granted in part and denied in part. The Court grants Plaintiff attorneys' fees in the amount of \$68,851.22, additional anticipated fees in the amount of \$2,000.00, and costs in the amount of \$14,813.83. Therefore, the Court awards Plaintiff \$85,665.05 total in attorneys' fees, costs, and expenses.

As a result of this ruling pursuant to CCP 664.6, the matter is dismissed WITHOUT PREJUDICE today, with the court retaining jurisdiction to enforce the payment of the fees awarded here pursuant to the settlement terms. Once fees are paid, the parties may file a dismissal WITH PREJUDICE, pursuant to CCP 664.6(g) ("Nothing in this section shall preclude a party from filing a request for dismissal with prejudice after the court has dismissed the case without prejudice pursuant to this section.")

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at [email protected] indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the

matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.